

civil litigation in an appropriate manner without unnecessary or unwarranted delay. Such is particularly true given the representations made by Plaintiff as to his age and health.

For these reasons, the motion to stay is denied. The parties remain free to file appropriate motions should they believe that discovery is improperly being propounded or withheld.

6. CU0002305 Jason Christ v. Jordan Hannah

Judge Tice-Raskin issued a tentative ruling prior to the March 6, 2026 hearing. It is restated, in relevant part, here.

Plaintiff's December 8, 2025, motion to strike the answer and cross-complaint is denied.

Defendant urges the Court to deny the motion because no supporting memorandum of points and authorities was filed by Plaintiff. The Court agrees.

Cal. Rules of Court, rule 3.113 "requires motions to be supported by memoranda containing 'a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced,'" and provides that a motion's failure to provide such a memorandum can be construed "as an admission that the motion ... is not meritorious...." *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 931, *quoting* Rule 3.1113(b) & (a). "Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." *Id.* at 934.

Accordingly, the motion is denied.

7. CU0002304 Jason Christ v. Justis Barquilla

Judge Tice-Raskin issued a tentative ruling prior to the March 6, 2026 hearing. It is restated, in relevant part, here.

The December 5, 2025, motion of Defendant Nationstar Mortgage LLC and America West Lender Services LLC to strike Plaintiff's first amended complaint ("FAC") is granted. Plaintiff's complaint filed on August 7, 2025 shall proceed as the operative complaint in this matter.

Defendants assert Plaintiff's FAC was not filed in conformity with the laws of the state and should be stricken. The Court agrees.

"Ordinarily, an amended complaint may be filed without leave of court only before responsive pleadings are filed." *Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 175, citing Code of Civ. Proc. § 472. "After the responsive pleadings are filed an amendment to a complaint ... requires leave of court." *Ibid.*, citing Code of Civ. Proc. § 473 (a).